ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	144th Commission Meeting
DATE:	13 September, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS *The HRS apprised on the 114th HRC meeting, as follows:* - *Extension of ESP's contract in Phuentsholing RO for another two years;* - *Endorsement of Rinchen Lhamo's resignation, however, the relieving date to be ascertained by the team leader and the Department concerned;* - *Issuance of requested letter of recommendation and work experience to Menuka Rai;* - *Expression of interest by Tashi Jamtsho for the EXCEL program;* - *Proposal for internal procedure for continuous reporting and monitoring of performance evaluations to only include qualitative assessments given the practical challenges to quantitatively evaluate the activities which are on-going in nature. Further, instead of determining specific period for review, it was proposed to undertake the reviews and accordingly submit the report as and when the respective targets are achieved.*	**The Commission noted.** **In addition, the Commission directed the HRC to review the expression of interest by the Tenzin Phuntsho for a specialist position.** **Further, with regards to instituting a system for continuous monitoring and reporting of performance, the Commission based on the lessons learnt and the feedback from the moderation exercise, particularly on the rushed and adhoc terminal evaluations of IWPs, the Commission directed the HRC to institute objective and transparent assessment system. This should ensure continuous monitoring, on a monthly basis, and at the same time undertake both quantitative as and qualitative assessments of performance, potentials, aptitude and attitude.**
2	Follow-up of systemic presentation to the RMA - DARe, LD, DoI, & PD, DoPE. *The ACC disseminated systemic recommendations on corruption in financial institutions, related to Phajo Nidup case, to the RMA on 13th September.*	**As discussed during the meeting with the RMA, the Commission decided to further disseminate the findings to all the Financial Institutions in collaborations with the RMA. It was decided to conduct the sessions at two different, management and operational, levels.**

		Further, directed DARe to share the draft systemic recommendations report with PD. Accordingly, PD to share the report with RMA for implementation and monitoring of the recommendations as part of the OIP activities.
2	Discuss an issue related to case 02/2022 – LD & DoI	**The Commission directed DoI and DoPS to coordinate a special bilateral meeting with the RAA to discuss the issue related to issuance of audit clearances for the political candidates. It was noted that it is important to have common understanding between the ACC and RAA on such matters.** **On another note, related to case 07/2023-2024, the Commission directed the team to defer the interrogation to February 2024, in keeping with the election period and the accused currently being unwell and out of the country.**
3	Discuss on informing the complainants on outcomes of complaints - DoPS & LD *While it is not required by the anti-corruption legislations, the Commission discussed the need to inform the complainants on outcomes of the ACC's interventions at various levels. This was towards keeping the complainant informed as well as closing the loop of the complaints received.*	**The Commission decided to inform the complainants on the outcome of the investigations (such as prosecution referral, administrative referral or dropped) and also those complaints that's are closed/dropped/shared for action and sensitization upon undertaking IE and ATR. While the known complainants can be directly informed on such outcomes, to also make conscious efforts to inform the unknown complainant, the Commission directed to revise/include such provision in the MyACC app.**
4	Present draft guidelines on Operation & Management of Escrow Account – EMD, DoPS	**The Commission endorsed the guidelines, with directive to ensure that the escrow monies are transferred on an annual basis to the MoF, specifically in the first week of June. Further, directed DoPS to standardize the form reference number like the other forms.**
5	Apprise monthly update on Escrow Account – EMD, DoPS *The opening balance of the escrow account was Nu. 12.230 million and the closing balance for the August month was Nu. 13.5 million.*	**The Commission noted the update of the escrow account.**
6	Present draft ToR for ICT back-up team – SS *Upon directive of the Commission, ICT back-up team was formed to provide timely troubleshooting support to the respective Department/Divisions.*	**Endorsed the proposed team composition and the draft ToR for the ICT back-up, with following directives:** - **to also designate one each ICT focal in the Bumthang and Trashigang ROs;** - **back-up team to also support the ICTS**

		with technical assistance in managing hardware, software and systems/applications; - **ICTS to conduct necessary trainings to the team, including the members from the ROs.**
7	Any others: - *Update on the malware attack on the server and the necessary action taken to temporarily shut down the server to avoid the spread of the virus attack. Monitoring the malware spread, the ICTS apprised that it has been spread mostly through the social media websites.* *In order to immediately scan, and also at the same time safeguard the server and database from such ever-growing malware threats, the ICTS proposed procurement of end-point security for the servers as well as desktops/laptops.*	**In view of urgency to recover from the malware attack, the Commission endorsed the ICTS' proposal to procure 20 number of '*End-point security and control* for servers' immediately to scan and remove the malware. SS was directed to prepare a comprehensive report on the malware attack and initiate the procurement immediately. However, with regards to the proposal to procure 200 number of end-points for users (laptops/computers), it was directed to be reviewed further, also in keeping with the budgetary limitations.** **Further, ICTS was directed to block the social websites, if required, to control the spread of the viruses through such websites.**
	- *Revisit the management committee for SWS - SS*	**In place of Ugyen Penjor, appointed Kinley Wangmo as the Chairperson of the management committee for staff welfare scheme (SWS).**

Commissioner **Commissioner** **Chairperson**

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